

Without Prejudice

Deed of Release

Parties

Name	Mr Cory Shepherd
Short form name	Applicant
Address details	Unit 12304/3113 Surfers Paradise Boulevard Surfers Paradise QLD 4217

Name	Metro South Hospital and Health Service
ABN	86 834 068 616
Short form name	Health Service
Address details	Building 19 Garden City Office Park, 2404 Logan Rd, Eight Mile Plains QLD 4113

Background

- A The Applicant was employed as an Administration Officer, Switchboard Services, Logan Hospital, Logan and Beaudesert Health Service, Metro South Hospital and Health Service on a permanent full-time basis working 76 hours per fortnight (**Employment**).
- B The Employment commenced on 25 March 2019.
- C On 8 October 2024, the Applicant received correspondence indicating that he was considered to be absent from duty without approved leave and without reasonable excuse and had abandoned his employment (**Absences**).
- D The correspondence nominated a separation date being 20 September 2024 (the **Dismissal**). On 23 October 2024, the Health Service paid out the Applicant's entitlements in accordance with relevant legislation.
- E On 25 October 2024, the Applicant submitted an application for reinstatement, matter number TD/2024/110, in the Queensland Industrial Relations Commission (**QIRC**) (**the Reinstatement Application**).
- F The Health Service by this deed, reinstates the Applicant to his former Employment effective 20 September 2024.
- G Without any admission of liability, the Applicant and the Health Service have reached agreement on the terms set out in this Deed.

Agreement

1. The Health Service reinstates the Applicant to his Employment with an effective date of 20 September 2024. The Reinstatement takes effect despite any documents that the Health Service may require the Applicant to execute (for example, for payroll purposes).
2. Upon execution of this Deed by both parties the Health Service agrees to:
 - (a) Credit leave balances paid out to the Applicant on 23 October 2024 as follows;
 - (i) annual leave: 54.16 hours.
 - (ii) leave loading: 54.16 hours

- (b) Reinstate the Applicant's personal leave balances as at the date of separation.
 - (c) Pay to the Applicant:
 - (i) The amount the applicant would have been paid in wages for the period of 20 September 2024 to 13 December 2024.
 - (ii) An amount of \$5,000 by way of legal expenses.(the **Settlement Sum**)
 - (d) Deduct from the Settlement Sum the gross amount of the credited leave balances, as calculated by the Health Service (inclusive of any taxable deductions paid by the Health Service, including but not limited to income tax withheld).
3. Upon execution of this Deed by both parties the Applicant agrees to:
 - (a) File a notice of discontinuance in relation to matter TD/2024/110 within 7 days.
 4. The period from 13 December 2024 to 23 February 2025 will be treated as leave without pay.
 5. If the Applicant is not fit to return to the workplace on executing this deed, he will apply for leave using the usual application process.
 6. The Health Service reserves the right to deal with the outstanding matters of the Applicant's absenteeism and communication with the Health Service regarding his Absences from the workplace.
 7. The Applicant reserves any legal rights or claims he may have in relation to any future management action taken against him by the Health Service pursuant to clause 6 herein.
 8. The Applicant releases the Beneficiaries from all claims arising from the Dismissal, excluding any common law personal injury claim, statutory Workers' Compensation claim, or any claim that cannot be excluded at law.
 9. This deed may be pleaded as a bar to any action, proceeding, claim or demand whatsoever which may be brought at any time by Mr Shepherd or any person claiming by, through or under Mr Shepherd, in respect of any claim, damages or remedy against the Respondent (including the Respondent's present and former officers, employees, servants, agents, successors and/or assigns) arising from the Dismissal.
 10. The Applicant will not make any adverse comment, publicly or otherwise, about any of the Beneficiaries in regard to this Deed or relating to the matters recited in this Deed.
 11. The Health Service will use its best endeavours to ensure that no employee of the Health Service (or its Beneficiaries) makes any adverse comment, publicly or otherwise, about the Applicant in regard to this Deed or relating to the matters recited in this Deed.
 12. The parties must keep this Deed and the settlement recorded in it strictly confidential except that they may disclose it as required by law; to enforce this Deed; to obtain professional legal or accounting advice; with the prior written consent of the other Party; or to the Australian Taxation Office; and in the case of the Health Service, to the extent necessary in the ordinary course of business.
 13. The Applicant warrants that he has read and understood this Deed and has had the opportunity to receive independent legal advice about the terms and effect of this Deed.
 14. The Applicant will comply with all ongoing obligations to the Health Service as had applied to the Employment.
 15. The Applicant must execute all further documents required by the Health Service to give effect to this Deed.
 16. If this Deed is marked 'Without Prejudice' then (despite these words) this Deed will become an open and binding agreement when its terms are agreed by the parties.
 17. Clause 8 also has effect as a deed poll given by the Applicant in favour of the Beneficiaries.
 18. In this Deed:
Beneficiaries means:
 - (a) the Health Service;

- (b) each other Hospital and Health Service and the Department of Health;
- (c) the State of Queensland;
- (d) each of the related bodies corporate of the Health Service (as that term is used in the *Corporations Act 2001*) (**RBC**); and
- (e) the current and former officers and employees of the Health Service and each RBC.

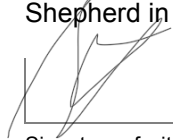
Claim means any present or future, actual or contingent, claim, cause of action, complaint, liability, all or any legal or other costs or expense that any person has or might have whether or not the facts, matters or circumstances giving rise to that Claim are known to that person or to any other person at the date of this Deed.

Deed means this Deed of Release.

- 19. This Deed may be executed in any number of counterparts. All counterparts will be taken to constitute one instrument.
- 20. This Deed constitutes the entire agreement of the Parties relating to this Deed. It supersedes all prior understandings, negotiations, agreements, written or oral, express or implied, in relation thereto.
- 21. This Deed is governed by the law applicable, and the parties submit to the exclusive jurisdiction of the Courts, in Queensland.

EXECUTED as a Deed of Release

Signed, sealed and delivered by Mr Cory
Shepherd in the presence of



Signature of witness

Thomas Balsley

Name of witness (print)



Mr Cory Shepherd

14.02.2025

Date

Signed for Metro South Hospital and Health
Service by its duly authorised officer in the
presence of



Signature of witness

Ellen Duckering

Name of witness (print)

Digitally signed by
Ellen Duckering
Date: 2025.02.21
09:07:24 +10'00'



Signature of officer

Noelle Cridland

Digitally signed by
Noelle Cridland
Date: 2025.02.21
09:06:48 +10'00'

Health Service Chief Executive

21 February 2025

Date